

The court found that the expert had “no personal knowledge of the underlying facts of the case, and attempted to testify to facts derived from medical and hospital records which were not properly before the court. Therefore, his declaration of alleged facts had no evidentiary foundation.”

Here, as noted by Defendants on Reply, the records are before the Court. Plaintiffs submitted the records of the Reutlinger Community, as well as Marat’s records from John Muir, San Ramon Regional Medical Center, and San Ramon Valley Fire Protection, among others. Plaintiffs’ own experts indicate they reviewed and relied upon these same documents. As such, these documents are ‘properly before the court,’ unlike in *Garibay* where they were submitted to the court at all.

Plaintiffs Objections 1-9: Overruled.

Defendant’s Objections

“Each written objection ***must be numbered*** consecutively” (Cal. R. Ct. 3.1354(b).) Defendant fails to include this basic information.

Defendants’ Objections 1-24: Overruled.

Conclusion

Defendants’ motion for summary judgment is **denied**. Defendants’ motion for summary adjudication is:

- **Denied** as to the negligence cause of action.
- **Denied** as to the wrongful death cause of action.
- **Denied** as to the elder abuse – neglect cause of action.

Granted as to the request for enhanced remedies related to the elder abuse – neglect cause of action.

17. 9:00 AM CASE NUMBER: N26-0572

CASE NAME: PETITION OF: JOSE GRACIANO HUEZO

***HEARING ON MOTION IN RE: PETITION**

FILED BY:

TENTATIVE RULING:

Introduction

Petitioner Jose Graciano Huezo (“Petitioner”) filed the instant petition seeking relief from the claim presentation requirements for a cause of action that accrued when his car was impounded by the Richmond Police Department in February 2023. On April 3, 2026, Petitioner filed the instant petition seeking relief from this Court from the claim presentation requirements.

For the reasons discussed below, the Court **denies the Petition for Relief from Claim Presentation Requirement.**

Factual Background

The claim arises from the towing and subsequent loss of Petitioner's 1995 Volvo on or about February 1, 2023, following involvement with Richmond Police Department officers. (Petition ¶ 3.)

After being released, Petitioner was informed that the vehicle could be retrieved at a later time. (Petition ¶ 4.) Petitioner was not provided written lien notice, certified mail notice, or any documentation explaining storage deadlines, lien procedures, or disposition of his 1995 Volvo. (Id.) Petitioner did not receive any mailed notice regarding the vehicle's disposition. (Id.)

The only written document Petitioner received during this period was an Order for Return of Property dated December 1, 2023, relating to a separate 2015 Volkswagen Passat. (Petition ¶ 5.) Petitioner reasonably believed the 1995 Volvo remained in storage and available for retrieval. (Petition ¶ 5.)

During the period from 2023 through 2025, Petitioner was receiving medical and mental health treatment, and his medical records reflect depression, anxiety, and significant stress related to legal and property issues which impaired Petitioner's ability to manage administrative and legal matters during that period. (Petition ¶ 9.)

On October 8, 2025, Petitioner contacted the Records Division and was informed that no retrievable record or recovery option could be located. (Petition ¶ 6.) This was the first time Petitioner understood that the vehicle could not be recovered. (Id.) Petitioner asserts he acted promptly after discovery on October 8, 2025, that his vehicle could not be recovered and submitted the late claim application within a reasonable time thereafter. (Petition ¶ 10.)

Procedural Background

a. Petitioner's Small Claims Action

On November 12, 2025, Petitioner filed a small claims action against the City claiming lost property in the amount of \$3,500. (Request for Judicial Notice ("RJN") ¶ 1, Exh. A.) He pleaded he presented a claim to the City on November 1, 2025. (RJN ¶ 1, Exh. A at ¶ 8.) However, at the hearing on January 14, 2026, Petitioner dismissed his case without prejudice in order to pursue a claim with the City. (RJN ¶ 2, Exh. B.)

b. Petitioner's Government Claim

On December 23, 2025, Petitioner presented a claim to the City by mail. (RJN ¶ 3, Exh. C.) According to the claim form, in February 2023, a Richmond police officer stopped Petitioner while driving to work. During the stop, his car was taken. He claimed fair market price of \$2,500 for the vehicle. (RJN ¶ 3, Exh. C.) Because the claim was presented more than six months after the accrual of Petitioner's cause of action in February 2023, on January 8, 2026, the City served a notice of return of late claim without action consistent with Government Code section 911.3. (RJN ¶ 4, Exh. D.)

c. Petitioner's Application to Present a Late Claim

On January 22, 2026, Petitioner presented an application for leave to present a late claim by mail. (RJN ¶ 5, Exh. E.) According to the application, in February 2023, his vehicle was taken or towed at the direction of the Richmond Police Department during a traffic stop. (RJN ¶ 5, Exh. E.) He claimed he was not provided documentation and despite attempts to obtain records or recover his vehicle, records could not be located and the vehicle was never returned. (RJN ¶ 5, Exh. E.) He explained the reason for the delay in presenting the tort claim was "mistake, excusable neglect, and lack of knowledge of the Government Claim requirement" and because he "contacted the Richmond Police

Department seeking records and recovery of my vehicle and reasonably believed the matter was being handled internally.” (RJN ¶ 5, Exh. E.) He claimed he “acted promptly once [he] learned a Government Claim was required.” He attached no proposed tort claim to the application, which is required under Government Code section 911.4(b).

Because the application was presented more than a year after the accrual of Petitioner’s cause of action in February 2023, on February 9, 2026, the City served a notice of return of the late claim application without action because the application was incomplete for not attaching the proposed claim and was not presented “within a reasonable time not to exceed one year after the accrual of the cause of action” as set forth in Government Code section 911.4(b). (RJN ¶ 6, Exh. F.)

Legal Standard

Pursuant to Govt. Code §§ 905, 910 and 911.2, a claim against a public entity for money or damages for death or for injury to person or to personal property shall be presented within six months after the accrual of the cause of action.

In proceeding on a petition for relief, the petitioner bears the burden of proving two elements by a preponderance of the evidence: first, that his or her application to the public entity for leave to file a late claim was presented within a reasonable time, not to exceed that specified in subdivision (b) of Section 911.4; and second, that one of four statutory grounds on which the court may grant relief is present. (*Rivera v. City of Carson* (1981) 117 Cal.App.3d 718, 723.)

Govt. Code 911.4 provides:

(a) When a claim that is required by Section 911.2 to be presented not later than six months after the accrual of the cause of action is not presented within that time, a written application may be made to the public entity for leave to present that claim.

(b) The application shall be presented to the public entity as provided in Article 2 (commencing with Section 915) within a reasonable time not to exceed one year after the accrual of the cause of action and shall state the reason for the delay in presenting the claim. The proposed claim shall be attached to the application.

Pursuant to Govt. Code § 945.4: “Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented ... until a written claim therefor has been presented to the public entity and has been acted upon by the board.”

“A trial court has broad discretion in ruling on a petition for relief from the claim-filing requirement as long as the issue is whether the late claim was presented within a ‘reasonable time’ not to exceed one year after the accrual of the cause of action.” (*County of L.A. v. Sup. Ct.* (2001) 91 Cal.App.4th 1303, 1313.) “When the underlying application to file a late claim is filed more than one year after the accrual of the cause of action, the court is without jurisdiction to grant relief under ... section 946.6.” (*Last Frontier Healthcare Dist. v. Superior Court* (2019) 33 Cal.App.5th 492, 497; citing *Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1779.)

Analysis

Petitioner's Application to File a Late Government Claim Was Made over One Year After the Accrual of the Cause of Action

Before a court may grant relief from the claim requirements, a petitioner must establish that the application for late claim was presented within a reasonable time, not to exceed one year after the accrual of the cause of action. (Gov. Code § 946.6; *Reyes v. County of Los Angeles* (1988) 197 Cal.App.3d 584, 590.) This showing must be made by a preponderance of the evidence. (*Dep't of Water & Power v. Superior Court* (2000) 82 Cal.App.4th 1288, 1293.)

When a petitioner cannot demonstrate that an application for late claim was presented within one year, the court has no jurisdiction to grant relief. (*Greyhound Lines, Inc. v. County of Santa Clara* (1986) 187 Cal.App.3d 480, 488; see also *Brandon G. v. Gray* (2003) 111 Cal.App.4th 28, 34 ("The court, however, lacks jurisdiction to grant relief if the application to file a late claim was filed more than one year after the cause of action accrued."))

The California Supreme Court has stated that "[g]enerally speaking, a cause of action accrues at 'the time when the cause of action is complete with all of its elements.'" (*O.B. v. Los Angeles Unified School Dist.* (2025) 113 Cal.App.5th 930, 941; citing *Rubenstein v. Doe No. 1* (2017) 3 Cal.5th 903, 911.) However, accrual of a cause of action is postponed until the plaintiff discovers, or has reason to discover, the cause of action. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) Rather than examining whether the plaintiffs suspect facts supporting each specific legal element of a particular cause of action, we look to whether the plaintiffs have reason to at least suspect that a type of wrongdoing has injured them. (*Id.*)

The Petition states that Petitioner lost his vehicle on February 1, 2023, which is when his claim accrued against the City. Thus, Petitioner had until February 1, 2024, to present his late claim application to the City. According to the City's records, Petitioner did not meet his deadline.

Late claim applications are deemed presented on the day they are deposited in the mail. (Gov. Code § 915.2.) The envelope Petitioner's mailed in late claim application was postmarked January 22, 2026. (RJN ¶ 5, Exh. E.) This is over two years after Petitioner's cause of action accrued. Petitioner cannot cure this to avoid a jurisdictional prerequisite. Accordingly, this Court does not have jurisdiction to grant this Petition.

Conclusion

For the reasons analyzed above, Court **denies the Petition for Relief from Claim Presentation Requirement.**

18. 9:00 AM CASE NUMBER: N26-0671
CASE NAME: CLAIM OF:AVA AVALOS
*HEARING ON MINOR'S COMPROMISE
FILED BY: AVALOS, JAVIER
TENTATIVE RULING:

Given the amended filing, this line appears duplicative.

19. 9:00 AM CASE NUMBER: N26-0671
CASE NAME: CLAIM OF:AVA AVALOS
*HEARING ON MINOR'S COMPROMISE AMENDED